

THE BIOLOGICAL DIVERSITY RULES, 2024

Title: Short Title and Commencement of the 2024 Rules

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 1

Plain English Summary:

Rule 1 confirms these Rules are called the Biological Diversity Rules, 2024, and that they replace the old 2004 Rules 60 days after gazette notification. For an Ayurvedic business, this tells you which rulebook currently governs your NBA compliance obligations — the 2024 Rules, not the 2004 ones.

The Exact Legal Text:

1. Short title and commencement.— (1) These rules may be called the Biological Diversity Rules, 2024.
(2) They shall come into force on expiry of sixty days from the date of their notification in the Official Gazette.

Keywords/Triggers:

2024 rules commencement, biodiversity rules effective date, supersession 2004 rules, gazette notification, applicable biodiversity rules, current NBA rules

Title: Key Definitions Under the 2024 Rules

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 2

Plain English Summary:

Rule 2 defines administrative terms used throughout the Rules — "Authority" (the NBA), "Adjudicating Officer," "Biodiversity Management Committee," "fee," and "Form." For an Ayurvedic applicant, these definitions tell you exactly which official body, form number, or fee schedule a given rule is referring to.

The Exact Legal Text:

2. Definitions.— (1) In these rules, unless the context otherwise requires,—

(a) "Act" means the Biological Diversity Act, 2002 (18 of 2003);

(b) "Authority" means the National Biodiversity Authority established under sub-section (1) of section 8 of the Act;

(c) "Adjudicating Officer" means any officer appointed under section 55A of the Act;

(d) "Biodiversity Management Committee" means a Biodiversity Management Committee established under sub-section (1) of section 41 of the Act;

(e) "Chairperson" means the Chairperson of the Authority;

(f) "fee" means any fee as specified in the First Schedule to these rules;

(g) "Form" means a Form specified under the Second Schedule to these rules;

(h) "Member" means a member of the Authority and includes the Chairperson and the Member Secretary;

(i) "Member-Secretary" means a full time Secretary of the Authority, or of the State Biodiversity Board or of the Union territory Biodiversity Council, as the case may be.

(2) Words and expressions used but not defined in these rules and defined in the Act shall have the meanings respectively assigned to them in the Act.

Keywords/Triggers:

NBA definitions, adjudicating officer meaning, BMC definition, fee schedule reference, form definition, biodiversity rules terminology

Title: Appointment of the NBA Chairperson

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 3

Plain English Summary:

Rule 3 sets out how the NBA's Chairperson is appointed by the Central Government — either on deputation (requiring at least Additional Secretary rank) or by outside selection. This is background governance information, useful if an Ayurvedic company needs to know who currently leads the authority approving its applications.

The Exact Legal Text:

3. Manner of selection and appointment of Chairperson.— (1) The Chairperson shall be appointed by the Central Government.

(2) Every appointment of Chairperson under sub-rule (1) shall be made either on deputation basis including short-term contract or by selection from outside the Government, and in case the appointment is through deputation from the Government or a short-term contract, the applicant shall not be below the rank of Additional Secretary to the Government of India.

Keywords/Triggers:

NBA Chairperson appointment, deputation basis, Additional Secretary rank, Central Government appointment, NBA leadership, authority chairperson

Title: Term of Office of the Chairperson

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 4

Plain English Summary:

Rule 4 fixes the Chairperson's term at three years, renewable, but capped at age 65, with a one-month resignation notice requirement. This is administrative context rather than something that directly affects an Ayurvedic applicant's filings.

The Exact Legal Text:

4. Term of office of the Chairperson.— (1) The Chairperson shall hold office for a term of three years from the date of publication of appointment and shall be eligible for re-appointment:

Provided that no Chairperson shall hold office as such after he attains the age of sixty-five years or his term of office expires, whichever is earlier.

(2) The Chairperson may resign from office by giving one-month notice in writing to the Central Government.

Keywords/Triggers:

Chairperson term, three year term NBA, re-appointment eligibility, resignation notice, retirement age NBA, chairperson tenure

Title: Pay and Allowances of the Chairperson

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 5

Plain English Summary:

Rule 5 sets the Chairperson's pay at the level of a Government Secretary, with standard allowances. This is purely internal governance detail with no direct bearing on Ayurvedic patent or ABS compliance.

The Exact Legal Text:

5. Pay and allowances.— (1) A Chairperson shall be entitled to a pay equivalent to that of a Secretary to the Government of India.

(2) In case a retired person is appointed as Chairperson, pay shall be fixed in accordance with the extant orders of the Central Government as applicable to such persons.

(3) A Chairperson shall be entitled to such allowances, leave, pension, provident fund, medical facilities, rent free accommodation or house rent allowance, and other perquisites, as are admissible to officers of the Central Government of equivalent rank.

Keywords/Triggers:

Chairperson pay, Secretary equivalent pay, retired person appointment, NBA allowances, chairperson perquisites, government pay scale

Title: Term and Allowances of Non-Official Members

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 6

Plain English Summary:

Rule 6 caps non-official NBA member terms at three years and entitles them to sitting/travel allowances for attending meetings. Purely internal governance, not directly relevant to applicants.

The Exact Legal Text:

6. Term of office and allowances of non-official Members.— (1) Every non-official member shall hold office for a term not exceeding three years at a time from the date of publication of appointment of such member in the Official Gazette.

(2) Every non-official member attending the meeting of the Authority shall be entitled to sitting allowance, travelling expenses, daily allowance and such other allowances as are applicable to non-official member of Commissions and Committees of the Central Government attending the meetings of such Commission or Committee.

Keywords/Triggers:

non-official member term, sitting allowance, NBA member tenure, committee allowances, three year term member, NBA governance

Title: Filling Vacancies of Non-Official Members

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 7

Plain English Summary:

Rule 7 explains how a non-official NBA member may resign and how a resulting vacancy gets filled by fresh nomination for the remainder of the term. Internal governance detail.

The Exact Legal Text:

7. Filling of vacancies of non-official Members.— (1) A non-official member may resign from office at any time by giving one month notice in writing addressed to the Central Government under intimation to the Chairperson.

(2) On acceptance of the resignation by the Central Government or on the expiry of the period of notice, the seat of that member in the Authority shall become vacant.

(3) A casual vacancy of a non-official member shall be filled up by a fresh nomination and the person nominated to fill the vacancy shall hold office only for the remainder of the term of the member in whose place such member was nominated.

Keywords/Triggers:

member resignation, casual vacancy, fresh nomination NBA, non-official member vacancy, resignation notice period, NBA membership

Title: Removal of NBA Members

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 8

Plain English Summary:

Rule 8 protects NBA members from removal without a proper inquiry and hearing, per the grounds specified in the Act. Internal governance safeguard, not directly relevant to applicants.

The Exact Legal Text:

8. Removal of the Members.— No Member shall be removed from office on any ground specified in section 11 of the Act, without conducting an inquiry by the Central Government and without giving such member a reasonable opportunity of being heard.

Keywords/Triggers:

member removal, inquiry before removal, reasonable opportunity of hearing, section 11 grounds, NBA member protection, due process removal

Title: Role of the Member-Secretary

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 9

Plain English Summary:

Rule 9 designates the Member-Secretary as the NBA's administrative head responsible for meetings, records, and issuing directions under seal. For applicants, this is the officer whose signature/seal typically appears on official NBA correspondence and orders.

The Exact Legal Text:

9. Member-Secretary.— (1) The Central Government shall appoint a Member-Secretary to the Authority.

(2) The Member-Secretary shall be entitled to pay equivalent to that of a Joint Secretary to the Government of India.

(3) The terms and conditions of appointment of the Member-Secretary shall be determined by the Central Government.

(4) The Member-Secretary shall be responsible for convening the meetings of the Authority, maintenance of the records of the proceedings of the Authority and such other matters as may be assigned to him by the Authority or by the Chairperson.

(5) The Member-Secretary shall be in-charge of all the papers and records of the Authority and shall be responsible for their safe custody.

(6) All directions, resolutions, orders and instructions issued by the Authority generally shall be under the seal and signature of the Member-Secretary or any other officer authorised by the Chairperson in this behalf.

Keywords/Triggers:

Member-Secretary role, Joint Secretary pay, NBA official seal, meeting records custodian, NBA administrative head, official signature NBA orders

Title: Meetings of the Authority

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 10

Plain English Summary:

Rule 10 requires the NBA to meet at least quarterly, sets notice periods (15 days ordinary, 3 days special), a quorum of seven, and voting rules including the Chairperson's casting vote. This explains the internal decision-making process behind any NBA approval or rejection an Ayurvedic applicant receives.

The Exact Legal Text:

10. Meetings of Authority.— (1) The Authority shall meet at least once in three months in a year at the Headquarters of the Authority or at such place as may be decided by the Chairperson.

(2) The Chairperson shall, upon a written request from not less than six members of the Authority or upon a direction of the Central Government, call a special meeting of the Authority.

(3) The members shall be given at least fifteen days' notice for holding an ordinary meeting and at least three days' notice for holding a special meeting specifying the purpose, the time and the place at which such meeting is to be held:

Provided that the Chairperson may authorise convening an emergency meeting of the Authority by giving a short notice to the members for considering and taking decisions on urgent matters.

(4) Every meeting shall be presided over by the Chairperson and in the absence of the Chairperson, a presiding officer to be elected in the presence of Member-Secretary from amongst

the members present.

(5) The decisions of the Authority at a meeting shall, if necessary, be taken by a simple majority of the members present and voting and the Chairperson or in absence of the Chairperson, the member presiding shall have a second or casting vote.

(6) Each member including the Member-Secretary shall have one vote.

(7) The quorum at every meeting of the Authority shall be seven.

(8) A member shall be entitled to bring forward any matter for the consideration of the Authority in its meeting of which he has given ten days' notice or the Chairperson in his discretion permits to do so.

(9) Notice of the meeting may be given to the members by the Member-Secretary of the Authority electronically or in such other manner as deemed fit in the circumstances of the case.

Keywords/Triggers:

NBA meeting quorum, quarterly meeting requirement, casting vote chairperson, emergency meeting NBA, simple majority decision, NBA meeting notice period

Title: General Functions and Powers of the NBA

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 11

Plain English Summary:

Rule 11 lists the NBA's broad administrative functions — running the National Biodiversity Fund, developing biodiversity registers and databases, advising on heritage sites, adjudicating inter-Board disputes, acting as India's competent authority under the Nagoya Protocol, and running an online IT portal for applications. For an Ayurvedic company, the online-portal function (clause (y)) is the most practically relevant, since it confirms all applications are meant to be filed digitally.

The Exact Legal Text:

11. General functions of Authority.— The Authority may,—

(a) administer the National Biodiversity Fund;

(b) sanction grants to the State Biodiversity Boards or Union territory Biodiversity Councils and Biodiversity Management Committees for specific purposes;

(c) decide on the format and contents of the mutually agreed terms of the various agreements to be executed between the parties embodying the approvals of the Authority;

- (d) provide technical and legal advice, clarifications and guidance to the State Biodiversity Boards or Union territory Biodiversity Councils for implementing the provisions of the Act;
- (e) coordinate the activities of the State Biodiversity Boards and the Union territory Biodiversity Councils;
- (f) specify the electronic and/or manual formats of the People's Biodiversity Register and lay down the procedure for documentation of information related to biodiversity, its periodic updating, securely maintaining it in an electronic or digitised form and for sharing of such information;
- (g) develop databases and documentation systems for biological resources and traditional knowledge associated thereto through People's Biodiversity Registers in a given geographical area;
- (h) provide guidance and technical support to the Biodiversity Management Committees through the State Biodiversity Board or Union territory Biodiversity Council or directly, if required for preparation, validation and maintenance of Biodiversity Registers;
- (i) report to the Central Government about the functioning of the Authority and implementation of the Act;
- (j) inspect any area and examine documents in connection with the implementation of the Act;
- (k) collect, compile and publish technical and statistical data, manuals, codes or guides relating to biodiversity including conservation, sustainable use of its components, and fair and equitable sharing of benefits arising out of the use of biological resources and knowledge associated thereto;
- (l) sponsor studies, research, investigations, projects, workshops, seminars, conferences, etc., to achieve the objectives of the Act;
- (m) create awareness and organise training and capacity building programmes for all stakeholders including the line departments and academic, scientific and research institutions for achieving the objectives of the Act;
- (n) prepare the annual budget, maintain proper accounts and other relevant records, and prepare an annual statement of accounts in such form, as may be prescribed by the Central Government;
- (o) frame regulations governing the recruitment and conditions of service of the officials of the Authority;
- (p) engage consultants and advisors, for a specific period, not exceeding three years, for providing assistance to the Authority for the effective discharge of its functions:
Provided that if it is necessary and expedient to engage any consultant or advisor beyond a period of three years, the Authority shall seek prior approval of the Central Government;
- (q) recommend creation of posts, periodic revision of recruitment rules, pay and allowances and terms and conditions of service to the Central Government for effective discharge of the functions by the Authority;
- (r) function as a Competent National Authority for the purposes of Nagoya Protocol on access to genetic resources and the fair and equitable sharing of benefits arising from their utilization to the Convention on Biological Diversity;

- (s) adjudicate the disputes of State Biodiversity Boards and Union territory Biodiversity Councils as referred to by the Central Government;
- (t) lay down model guidelines for adjudicating disputes of the Biodiversity Management Committees by the State Biodiversity Boards or Union territory Biodiversity Councils;
- (u) develop procedures, in consultation with the State Biodiversity Boards or Union territory Biodiversity Councils, National Medicinal Plants Board, or any other authority as deemed appropriate, for seeking exemption under sub-section (1) of section 7 of the Act on production of a certificate of origin of cultivated medicinal plants;
- (v) suggest guidelines for framing rules by the State Government or Union territory Administration for conservation and management of the areas of biodiversity importance notified as biodiversity heritage sites;
- (w) formulate model guidelines for collection of fee by the Biodiversity Management Committees for accessing biological resources from their jurisdiction;
- (x) facilitate the Biodiversity Management Committees, whenever necessary, for providing prior informed consent by the local communities for access to biological resources and the traditional knowledge associated thereto;
- (y) develop an online Information Technology portal for the discharge of its various functions under the Act in a transparent and accountable manner.

Keywords/Triggers:

NBA functions, National Biodiversity Fund administration, Peoples Biodiversity Register, Nagoya Protocol competent authority, online IT portal NBA, biodiversity heritage sites, prior informed consent

Title: Powers and Duties of the Chairperson

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 12

Plain English Summary:

Rule 12 gives the Chairperson day-to-day control of the NBA and, critically, emergency powers to fast-track approvals during epidemics or pandemics. For an Ayurvedic company facing a health emergency scenario, this rule is the basis for expedited NBA clearance.

The Exact Legal Text:

12. Powers and duties of Chairperson.— (1) The Chairperson shall have overall control of the

day-to-day activities of the Authority.

(2) The Chairperson shall have the powers of general superintendence over the officials of the Authority and issuing necessary directions for the conduct and management of the functions of the Authority.

(3) The Chairperson, either directly or through the Member-Secretary or any other officer of the Authority authorized for the purpose, may sanction and disburse all payments against the approved budget.

(4) The Chairperson shall have powers for granting administrative, financial and technical sanctions to all the proposals.

(5) The Authority may delegate any of its power under section 16 of the Act to the Member-Secretary or to any officer of the Authority not below the rank of a Section Officer in the Government of India.

(6) The Chairperson shall take all necessary measures for the implementation of all decisions taken by the Authority in proper manner.

(7) In case of any present and imminent emergency situations like epidemics and pandemics particularly those that threaten, or damage human, animal or plant health as determined at national and international level, the Chairperson may exercise the powers of the Authority for granting expeditious approvals and shall place all such approvals before the next meeting of the Authority for approval.

(8) The Chairperson shall exercise such other powers and perform such other functions as may be delegated to him by the Authority or the Central Government from time to time.

Keywords/Triggers:

Chairperson emergency powers, expeditious approval pandemic, epidemic fast-track NBA, financial sanction chairperson, delegation of powers, emergency approval biodiversity

Title: Procedure for Access to Biological Resources and Associated Knowledge

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 13

Plain English Summary:

Rule 13 is the core application procedure for foreign-linked applicants (under section 3(2)) seeking access to Indian biological resources or traditional knowledge — Form 1 for research/bio-survey, Form 2 for commercial utilisation, both paid to the National Biodiversity

Fund. For an Ayurvedic company with foreign ownership, this is the step-by-step process, including the 90-day decision timeline, consultation with the local Biodiversity Management Committee, and the requirement to sign a mutually agreed terms agreement within 60 days of NBA's draft.

The Exact Legal Text:

13. Procedure for access to biological resources and knowledge associated thereto.— (1) Any person, referred to in sub-section (2) of section 3 of the Act, seeking approval of the Authority for access to biological resources and knowledge associated thereto for research or for bio-survey and bio-utilisation shall make an application on the web portal of the Authority in Form 1, and for commercial utilisation shall make an application on the web portal of the Authority in Form 2.

(2) Any person, referred to in sub-section (2) of section 3 of the Act, who was in possession of a biological resource before the coming into force of the Biological Diversity (Amendment) Act, 2023, shall seek approval of the Authority for the purpose of research, commercial utilisation, bio-survey and bio-utilisation.

(3) Every application under sub-rule (1) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund.

(4) The Authority may, after consultation with the Biodiversity Management Committee either directly or through State Biodiversity Board or Union territory Biodiversity Council, and after collecting such additional information from the applicant and other sources, as required, and based on the merits of the application, may grant approval subject to terms and conditions, including benefit sharing, or reject, as deemed fit within a period of ninety days from the receipt of the application in complete form:

Provided that if the requisite information sought by the Authority has not been made available by the applicant within a period of thirty days from the date of seeking information, the application shall be closed and applicant shall be informed about the closure:

Provided further that the Biodiversity Management Committee before conveying its views to the Authority, may consult, wherever required, the community, individual or entity concerned to whom the bio-resource belongs to, as the case may be, to ensure their prior informed consent:

Provided also that in cases of present or imminent emergencies situation, the Authority shall process the application expeditiously.

(5) The approval to access shall be in the form of an agreement on mutually agreed terms duly signed by an authorized officer of the Authority and the applicant:

Provided that the application is deemed to be closed, if the applicant does not sign the agreement within a period of sixty days from the date of communication of the draft agreement by the Authority, upon intimation to the applicant:

Provided further that such closed application may be revived on receipt of payment of the half of the fee specified for fresh application under sub-rule (3) within a period of ninety days.

(6) The Authority may for reasons to be recorded in writing, reject an application if it considers that the request cannot be acceded to:

Provided that the application shall not be rejected unless the applicant has been given a reasonable opportunity of being heard.

(7) The Authority shall publicise all the approvals granted or rejected on its website and shall also ensure that such information is shared with other agencies, as may be required.

(8) The compliance with the terms and conditions of the agreement shall be monitored by the Authority by involving State Biodiversity Board or Union territory Biodiversity Council, Biodiversity Management Committee or any other agency as deemed appropriate by the Authority.

Keywords/Triggers:

access approval procedure, Form 1 Form 2, commercial utilisation application, 90 day NBA timeline, prior informed consent BMC, benefit sharing agreement, application rejection hearing

Title: Restricting Access to Biological Resources and Associated Knowledge

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 14

Plain English Summary:

Rule 14 lists the grounds on which the NBA must restrict or refuse access — threatened/endemic species, harm to local livelihoods, environmental damage, genetic erosion, or use contrary to national interest — while allowing case-by-case exceptions for cultivated species. For an Ayurvedic company sourcing a wild or endangered medicinal plant, this rule flags the real risk that access could simply be refused.

The Exact Legal Text:

14. Restricting access to biological resources and knowledge associated with such biological resources.— (1) The Authority after conducting such enquiry as deemed appropriate in respect of any provisions of this rule, shall take steps to restrict or prohibit access to biological resources or knowledge associated with such biological resources for the following reasons, namely:—

- (a) the request for access is for any threatened and/or endemic species including those notified under section 38 of the Act;
 - (b) the request for access may result in an adverse impact on the livelihood and/or socio-cultural aspects of the local communities;
 - (c) the request for access may result in adverse environmental impact(s) which may be difficult to control and mitigate;
 - (d) the request for access may cause genetic erosion or affect the ecosystem functions including in the areas notified under section 37 of the Act;
 - (e) the request is for the use of resources for purposes contrary to national interest and other related international agreements entered into by India;
 - (f) for any other reasons to be recorded in writing.
- (2) Notwithstanding sub-rule (1), the Authority may permit access to cultivated species mentioned under clause (a) to (e) of that sub-rule depending on merits of each case for a specific period.

Keywords/Triggers:

restricted access grounds, threatened endemic species, genetic erosion, adverse livelihood impact, national interest exclusion, cultivated species exception, access refusal biodiversity

Title: Approval for Sharing or Transferring Research Results

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 15

Plain English Summary:

Rule 15 governs what happens when research based on Indian biological resources needs to be shared or transferred to a foreign-linked person — using Form 3 (transfer approval), Form 4 (transferee registering for further research), Form 5 (transferee's commercial use), or Form 6 (transferee's IP application). For an Ayurvedic research collaboration, the correct form depends on exactly what the foreign partner intends to do with the shared data.

The Exact Legal Text:

15. Procedure for seeking approval for sharing or transferring results of research to persons covered under subsection (2) of section 3 of the Act.— (1) Any person who intends to share or transfer any result of the research relating to biological resources or traditional knowledge associated thereto to persons covered under sub-section (2) of section 3 of the Act shall make an application on the web portal of the Authority in the following Forms, namely:—

(a) Form 3 for seeking prior approval of the Authority by any person for sharing or transferring the results of research to persons covered under sub-section (2) of section 3 of the Act for commercial purposes or otherwise;

(b) Form 4 for registration by the transferee (persons covered under sub-section (2) of section 3 of the Act) to use the results of research for further research;

(c) Form 5 for seeking prior approval of the Authority to use the results of research for commercial utilization by the transferee (persons covered under sub-section (2) of section 3 of the Act);

(d) Form 6 for seeking prior approval of the Authority to use the results of research for obtaining intellectual property rights by the transferee (persons covered under sub-section (2) of section 3 of the Act).

(2) Every application under sub-rule (1) shall be accompanied by a fee paid in an electronic transfer or digital payment form to the National Biodiversity Fund.

(3) The Authority after collecting such additional information from the applicant and other sources, as required, and based on the merits of the application, may grant approval subject to such terms and conditions including benefit sharing, or reject, as deemed fit, within a period of ninety days for receipt of the application under sub-rule (1):

Provided that if the requisite information sought by the Authority has not been made available by the applicant within a period of thirty days from the date of seeking information, the application shall be closed and the applicant shall be informed about the closure.

Provided that the application shall not be rejected unless the applicant has been given a reasonable opportunity of being heard.

(4) The approvals referred under this rule shall be granted in the form of an agreement on

mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application is deemed to be closed, if the applicant does not sign the agreement within a period of sixty days from the date of communication of the draft agreement by the Authority, upon intimation to the applicant:

Provided further that such closed application may be revived on receipt of payment of half of the fee specified for fresh application under sub-rule (2) within a period of ninety days.

(5) If the Authority is of the opinion that activities referred to in the registration made under clause (b) of sub-rule (1) are detrimental or contrary to the objectives of the Act, it may by order, prohibit or restrict any such activity.

(6) The applicant so registered with the Authority under clause (b) sub-rule (1) shall submit periodic status report as may be required by the Authority.

Keywords/Triggers:

Form 3 Form 4 Form 5 Form 6, transferring research results, foreign collaborator registration, transferee commercial use, transferee patent application, periodic status report NBA

Title: Prior Approval and Registration Before Grant of IP Rights

Jurisdiction: India

Category: Patents

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 16

Plain English Summary:

Rule 16 is the single most important rule for Ayurvedic patent filings under the 2024 framework. Section 3(2) (foreign-linked) applicants must seek prior NBA approval via Form 7 before any IP grant, with a 180-day decision window and a 45-day post-grant intimation duty; section 7 (Indian) applicants instead register via Form 8 before grant and separately seek commercialisation approval via Form 9 once ready to commercialise. For any Ayurvedic patent application based on an Indian biological resource, this rule spells out exactly which form and timeline applies depending on whether the applicant is foreign-linked or purely Indian.

The Exact Legal Text:

16. Procedure for registration and obtaining prior approval from Authority before grant of intellectual property rights.— (1) Procedure for seeking prior approval before grant of intellectual property rights by any person referred to in sub-section (2) of section 3 of the Act shall be as follows, namely:—

(a) Any person referred to in sub-section (2) of section 3 of the Act, applying for any intellectual property rights, in or outside India by applying on the web portal of the Authority in Form 7, for any invention based on research or information including digital sequence information on biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, shall seek prior approval of the Authority, before grant of intellectual property rights, by the competent authority in India or elsewhere;

(b) every application under clause (a) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) the Authority shall, after collecting such additional information from the applicant and other sources as deemed appropriate, and on being satisfied with the merits of the application, take a decision on granting approval or otherwise within a period of one hundred and eighty days from the date of receipt of application or on receipt of requisite information whichever is later, subject to such terms and conditions including benefit sharing, as it may deem fit:

Provided that the application shall be closed if the requisite information sought by the Authority has not been made available by the applicant within a period of ninety days from the date of seeking information and the applicant shall be informed about such closure;

(d) the approval shall be granted in the form of an agreement on mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application shall be deemed to be closed, if the applicant does not sign the agreement within a period of ninety days from the date of communication of the draft agreement by the Authority, upon intimation to the applicant:

Provided further that such closed application may be revived on receipt of payment of the half of the fee prescribed for submitting fresh application under clause (b) of sub-rule 1 within a period of ninety days;

(e) the applicant shall intimate the Authority within forty five days from the date of the grant of the intellectual property rights, failing which action as deemed fit will be taken by the competent authority;

(f) the Authority, for reasons to be recorded in writing, may reject an application if it considers that the request cannot be acceded to:

Provided that the application shall not be rejected unless the applicant has been given a reasonable opportunity of being heard.

(2) Procedure for registration before obtaining intellectual property rights by any person referred to under section 7 of the Act shall be as follows, namely:—

(a) any person referred to in under section 7 of the Act, applying for any intellectual property rights, in or outside India, shall register on the web portal of the Authority in Form 8, for any invention based on research or information including digital sequence information on biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, before grant of such intellectual property rights by the competent authority in India or abroad;

(b) every application under clause (a) for registration with the Authority, shall be accompanied by a specified fee in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) if the Authority is of the opinion that such an invention is the result of access to the knowledge held by a community or an individual or a group of individuals in an illegal manner, the Authority may recommend to the adjudicating officer to impose higher penalty with regard to damage and also value assessed or realised, as the case may be;

(d) the applicant shall intimate the Authority within forty five days of the grant of the intellectual property rights;

(e) the applicant at the time of registration shall give an undertaking that prior approval of the Authority will be taken before commercialisation of the intellectual property rights.

(3) Procedure for obtaining prior approval of the Authority for commercialisation of the intellectual property rights by any person referred to in under section 7 of the Act shall be as follows:

(a) at the time of commercialisation of the intellectual property rights referred to under clause (e) of sub-rule (2), the applicant shall obtain prior approval by applying on the web portal of the Authority in Form 9;

(b) every application under clause (a) shall be accompanied by a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) the Authority shall, after collecting such additional information from the applicant and other sources as deemed appropriate, and on being satisfied with the merits of the application, take a decision on granting approval or otherwise within a period of one hundred and eighty days from the date of receipt of application or on receipt of requisite information whichever is later, subject to such terms and conditions including benefit sharing, as it may deem fit;

(d) the approval shall be granted in the form of an agreement on mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application is deemed to be closed if the applicant does not sign the agreement within a period of ninety days from the date of communication of the draft agreement by the Authority to the applicant:

Provided further that such closed application may be revived on receipt of payment of the half of the fee specified for fresh application under clause 3(b) within a period of ninety days.

Keywords/Triggers:

Form 7 Form 8 Form 9, patent approval NBA, IP registration before grant, 180 day NBA decision, 45 day intimation grant, commercialisation approval patent, illegal knowledge access penalty

Title: Revocation of Access or Approval

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 17

Plain English Summary:

Rule 17 lets the NBA revoke a previously granted approval (access, transfer, or IP registration/commercialisation approvals) if the holder gave false information, breached agreement terms, or if public interest requires it — always after a hearing. For an Ayurvedic company, this means an existing NBA approval isn't necessarily permanent and can be pulled if compliance slips.

The Exact Legal Text:

17. Revocation of access or approval.— (1) The Authority may either on the basis of a complaint or suo moto withdraw the approvals granted under rules 13, 15, sub-rule (1) and (3) of rule 16 and rule 20 revoke the agreement or any part thereof, after giving a reasonable opportunity of being heard to the applicant, under the following conditions, namely:—

(i) on the basis of reasonable belief that the person to whom the approval was granted has declared false or misleading information or violated any of the provisions of the Act or the conditions on which the approval was granted;

(ii) when the person who has been granted approval has failed to comply with any of the terms and conditions of the agreement;

(iii) in the larger public interest or for the protection of environment and conservation of biological diversity, or on the basis of new facts or information brought to the notice of the Authority.

(2) The Authority shall forward a copy of every order of revocation to the State Biodiversity Board and Union territory Biodiversity Council and the Biodiversity Management Committee concerned for prohibiting the access and also to assess the damage caused, if any, and to take steps to recover the damages.

Keywords/Triggers:

revocation of approval, suo moto withdrawal, false information penalty, breach of agreement terms, public interest revocation, damage recovery NBA

Title: Use in India of Foreign Biological Resources or Traditional Knowledge

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 18

Plain English Summary:

Rule 18 requires anyone using a foreign biological resource or associated traditional knowledge within India (for research, commercial purposes, or IP rights) to declare it via Form 10, which the NBA then notifies to the international Access and Benefit-Sharing Clearing-House. For an Ayurvedic company importing a foreign herb or foreign traditional formulation, this is a mandatory disclosure step, though the form itself carries no fee.

The Exact Legal Text:

18. Measures for monitoring and regulating the use in India of biological resource or associated traditional knowledge obtained from any foreign country.— (1) Any person who intends to use in India the biological resource or traditional knowledge associated thereto obtained from any foreign country for research or for commercial purpose or for obtaining intellectual property rights, shall submit a declaration in Form 10 on the web portal of the Authority, as per the provisions of the Section 36(A) of the Act.

(2) The Authority, as per the provisions of the Section 36(A) of the Act, after obtaining relevant information from the user of such biological resource or traditional knowledge associated thereto, shall notify the same on the Access and Benefit-Sharing Clearing-House of the Convention on Biological Diversity.

(3) Based on the request of the provider country, the Authority, as per the provisions of the Section 36(A) of the Act, shall take appropriate measures on such use.

Keywords/Triggers:

foreign biological resource declaration, Form 10, ABS Clearing House, imported herb disclosure, foreign traditional knowledge use, section 36A compliance

Title: Certificate of Origin for Cultivated Medicinal Plants

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 19

Plain English Summary:

Rule 19 is highly relevant for Ayurvedic manufacturers: it lets you claim the section 7(2) exemption for cultivated (not wild-collected) medicinal plants by getting a certificate of origin from the local Biodiversity Management Committee (Form 11), for a nominal ₹200 fee, within 15 days. This certificate essentially proves your raw material was farmed, not wild-harvested, which is often the basis for reduced compliance burden — but the burden of proving origin rests on you as the end-user.

The Exact Legal Text:

19. Procedure for obtaining a certificate of origin for cultivated medicinal plants.— (1) Any person referred to in under section 7 of the Act, who intends to claim an exemption for accessing cultivated medicinal plants under subsection (2) of section 7, shall submit self-declaration in physical or digital form to obtain a certificate of origin from the Biodiversity Management Committee concerned in Form 11.

(2) The self-declaration referred to in sub-rule (1) shall contain details including the name and address of the applicant and the cultivator, geographical location including survey number, extent

of area under cultivation along with the details of the species being cultivated and parts thereof, and approximate quantity of the biological resources being accessed.

(3) The application shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the Local Biodiversity Fund.

(4) The Biodiversity Management Committee, based on the application submitted by the applicant including the cultivation and post-harvest details of the medicinal plants, and the entries made in the books maintained in Format 12, shall issue the certificate of origin of the cultivated medicinal plants referred to under sub-section (3) of section 7 of the Act and sub-rule (1) within a period of fifteen days:

Provided that if the certificate of origin is not issued within a period of fifteen days, the applicant shall approach the State Biodiversity Board concerned and the same may be disposed of within a period of seven days:

Provided further that in the case of any dispute between the applicant, Biodiversity Management Committee or State Biodiversity Board concerned, the same shall be referred to the Authority by the State Biodiversity Board concerned, and in such case, the decision of the Authority shall be final.

(5) For claiming exemption under sub-section (2) of section 7 of the Act, the onus of proof of source of origin of the medicinal plants shall lie on the end-user.

Keywords/Triggers:

certificate of origin, cultivated medicinal plants exemption, Form 11, BMC certificate 15 days, onus of proof origin, section 7(2) exemption, cultivated herb sourcing proof

Title: Non-Commercial or Emergency Research Outside India by Indian Researchers

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 20

Plain English Summary:

Rule 20 allows Indian researchers/institutions to send biological resources abroad for non-commercial research (including urgent epidemic-related studies) via Form 13, with a fast 45-day approval and a requirement to deposit voucher specimens in national repositories before the material leaves India. For an Ayurvedic research institute collaborating internationally on non-commercial studies, this is the correct pathway rather than the commercial-access routes.

The Exact Legal Text:

20. Procedure for conducting non-commercial research or research for emergency purposes outside India by Indian researcher or institution.— (1) Any Indian researcher or institution who intends to carry or send the biological resource outside India to undertake non-commercial research including carrying out urgent studies to address certain present or imminent emergencies like epidemics, shall apply on the web portal of the Authority in Form 13:

Provided that in case the traditional knowledge associated thereto is also to be transferred or carried along with the biological resources, the approval of the Authority shall be taken by the concerned foreign institution under rule 13.

(2) Every application under sub-rule (1) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund.

(3) The Authority shall, on being satisfied with the application under sub-rule (1), grant its approval within a period of forty five days from the date of receipt of the application.

(4) On receipt of approval of the Authority under sub-rule (3), the applicant shall deposit voucher specimens in the designated national repositories, wherever required, before carrying or sending the biological resource outside India and a copy of proof of such deposits shall be endorsed to the Authority.

Keywords/Triggers:

non-commercial research abroad, Form 13, emergency research export, voucher specimen deposit, 45 day approval, Indian researcher sending resource abroad, epidemic urgent study

Title: Management and Utilisation of the National Biodiversity Fund

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 21

Plain English Summary:

Rule 21 fixes the benefit-sharing split from the National Biodiversity Fund: the NBA/State Boards/Union territory Councils may retain 10–15% of monetary benefits, with the remainder going to identified benefit claimers (or other uses if no claimer is identified). For an Ayurvedic company negotiating benefit-sharing terms, this rule effectively tells you the administrative cut versus the amount that should reach the actual community or individual whose resource/knowledge was used.

The Exact Legal Text:

21. Management and utilisation of National Biodiversity Fund.— (1) The National Biodiversity Fund shall be operated by the Chairperson or by such other officer of the Authority as may be

authorised in this regard.

(2) The National Biodiversity Fund shall have two separate accounts, one relating to clause (a) of sub-section 1 of section 27 and the other under clause (b) and (c) of sub-section (1) of the Act which shall be utilised for the activities referred from sub-section (2) of section 27, as decided by the Authority.

(3) All receipts including monetary benefits accrued shall be deposited in the National Biodiversity Fund.

(4) The benefit sharing that is to be earmarked for the Authority, State Biodiversity Boards or Union territory Biodiversity Council may range from minimum of ten percent to maximum of fifteen percent as the case may be and rest may be transferred to benefit claimers or for other uses when benefit claimers are not identified.

(5) The Authority may specify measures for monitoring the utilisation of the Fund.

Keywords/Triggers:

National Biodiversity Fund, benefit sharing percentage, 10 to 15 percent earmark, benefit claimers payout, fund management NBA, monetary benefits deposit

Title: Appeal for Settlement of Disputes Under Section 50

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 22

Plain English Summary:

Rule 22 sets out how disputes between the NBA and State Boards/Union territory Councils (or between Boards/Councils themselves) get appealed to the Central Government via Form 14, within 30 days, with a 60-day resolution timeline. This is mostly relevant to State/NBA governance disputes rather than a typical Ayurvedic applicant's direct concerns.

The Exact Legal Text:

22. Appeal for settlement of disputes under section 50 of the Act.— (1) If a dispute arises between the Authority and a State Biodiversity Board or Union territory Biodiversity Council or

Boards and Councils in respect of implementation of any order or direction or on any policy decision, either of the aggrieved parties or the Authority or the Board or the Council, as the case may be, may prefer an appeal under section 50 of the Act in Form 14, to the Central Government.

(2) In case of a dispute between a State Biodiversity Board or Union territory Biodiversity Council and another Board or Council or among Boards or Councils, the Central Government, may refer the same to the Authority for resolution.

(3) The memorandum of appeal shall be accompanied by an authenticated copy of the order, direction or policy decision, as the case may be, by which the appellant is aggrieved and shall be submitted online, within thirty days from the date of the order, direction or policy decision:

Provided that if the Central Government is satisfied that there was a good and sufficient ground for the delay in preferring the appeal, it may, for reason to be recorded in writing, allow the appeal to be preferred after the expiry of the aforesaid period of thirty days.

(4) The notice for hearing the appeal shall be given on the web portal of the Authority in Form 15.

(5) Where a dispute is referred to the Authority under sub-rule (2), the Authority shall be guided by the principles of natural justice and as far as practicable, and follow the same procedure which the Central Government is required to follow under this rule.

(6) The Central Government or the Authority, after hearing the appellant and other parties, and after taking into consideration other relevant facts, if any, shall dispose of the appeal, within a period of sixty days.

(7) In disposing of an appeal, the Central Government or the Authority may modify or cancel the impugned order, direction or policy decision, as the case may be.

Keywords/Triggers:

section 50 appeal, dispute NBA State Board, Form 14, memorandum of appeal, 30 day appeal window, natural justice dispute resolution, Central Government appeal

Title: Manner of Inquiry by the Adjudicating Officer

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 23

Plain English Summary:

Rule 23 sets out the full quasi-judicial process for penalising non-compliance with sections 3, 4, 6 or 7 — notice, hearing, evidence, civil-court-style powers, and speaking orders, plus a mandatory 30-day pre-litigation notice (Form 16) before anyone can approach a court directly.

For an Ayurvedic business under investigation for non-compliance, this rule is your roadmap to the entire adjudication process and your rights within it.

The Exact Legal Text:

23. Manner of inquiry by the Adjudicating Officer.— (1) No Adjudicating Officer shall inquire into a complaint of non-compliance or contravention of the provisions referred to in section 55 of the Act unless the complaint is filed by or on behalf of the authorised officer, along with all necessary documents, either on its own motion or on receipt of a representation.

(2) The complaint may be represented by a presenting officer who shall be a legal practitioner and shall appear and present the case before the Adjudicating Officer, on behalf of the authorised officers, within their respective jurisdiction.

(3) The presenting officer shall, before forwarding the matter under sub-rule (1) to the Adjudicating Officer, process the same exercising reasonable due diligence, and bring on record all relevant facts and circumstances that need to be taken into account for imposing penalty, and also to ascertain if it is a matter necessary for adjudication and the authorized officer shall provide all the relevant documents and facts related to the case, to the presenting officer.

(4) The adjudicating officer within thirty days of receipt of the complaint shall issue a notice to the person against whom non-compliance or contravention to the provisions of section 3 or section 4 or section 6 or section 7 of the Act is alleged under section 55A of the Act, along with the particulars of the matter against him clearly specifying the nature of noncompliance or contravention, and such person may either appear personally or through an authorised representative, on such date as specified, which shall not be less than fifteen days from the date of service thereon and shall not exceed thirty days, in such format as may be prescribed by the Central Government.

(5) On such date as specified in the notice, the person or his authorised representative may admit or deny the allegations levelled against him, before the Adjudicating Officer.

(6) If the person or his representative admits to the allegations, the Adjudicating Officer shall state in his order such admission and impose a penalty and send a copy of the order to the concerned presenting officer and the person against whom complaint was filed.

(7) In cases not covered under sub-rule (6), the adjudicating officer shall fix a date for inquiry and communicate the same to the concerned presenting officer, for presentation of the matter.

(8) On the date fixed, the adjudicating officer shall give an opportunity to the person to produce documents or evidence as he may consider relevant to the inquiry.

(9) If any person fails or refuses to appear before the adjudicating officer as required by sub-rule (8) without sufficient cause, the adjudicating officer may proceed with the inquiry in the absence of such person.

(10) The Adjudicating Officer may also refer to the findings of the authority or officer authorised under section 55B of the Act or utilize their services, wherever necessary.

(11) While holding such inquiry, the adjudicating officer shall have power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the matter to give evidence or to produce any document which, in the opinion of the adjudicating officer, may

be useful for or relevant to the subject matter of the inquiry.

(12) For the purposes of sub-rule (11), the Adjudicating Officer shall have the following powers of a Civil Court, as specified in the Civil Procedure Code, 1908, namely:—

- (a) summoning and enforcing the attendance of any person and examining him on oath;
- (b) requiring the discovery and production of documents or other electronic records; and
- (c) receiving evidence on affidavits.

(13) On presentation of matter by the concerned presenting officer, defence given by the person and recording of such information as necessary, the adjudicating officer shall either dismiss the allegation or make such order as it deemed fit.

(14) All orders of the Adjudicating Officer shall be speaking orders, irrespective of whether penalty has been imposed by such order or not.

(15) The Adjudicating Officer shall complete the adjudication of every matter within ninety days from the date fixed under sub-rule (7), which is extendable upto a further period of ninety days if sufficient cause exists.

(16) If the subject-matter of a complaint received under this rule is already in question before the National Green Tribunal or any other Court of competent jurisdiction on the date of receipt of the matter, the proceedings under this rule shall not be initiated unless such latter case is finally disposed of and the Adjudicating Officer shall make an order of adjournment of the proceedings under this sub-rule.

(17) If the adjudicating officer is satisfied that the person concerned has failed to comply with the provisions of section 3 or section 4 or section 6 or section 7 of the Act, he shall impose a penalty as deemed fit in accordance with the provisions of section 55 of the Act.

(18) The Adjudicating Officer shall not pass an order for penalty if the Tribunal or Court has already passed an order to that effect in a proceedings referred to in under sub-rule (16).

(19) Any person or a benefit claimer who intends to make a complaint before any court about any offence under this Act shall give a notice of not less than thirty days in Form 16 about his intention to make a complaint to the Central Government or authority or officer authorised in that behalf, under section 61 of the Act, through online or registered post with acknowledgement due or speed post.

(20) Upon expiry of a period of thirty days from the recipient of notice and not being satisfied with the action taken by authority or Central Government, such person or the benefit claimer may file a written complaint before a court having jurisdiction to take cognizance of the offence under the Act:

Provided that the Central Government or any authority or officer authorised by that Government may under clause (a) of section 61 of the Act make a written complaint to court for taking cognizance of any offence under the Act.

Keywords/Triggers:

adjudicating officer inquiry, presenting officer, notice of contravention, speaking order penalty, 90 day adjudication timeline, Form 16 pre-litigation notice, civil court powers adjudicating officer

Title: Appeals from Order of the Adjudicating Officer

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 24

Plain English Summary:

Rule 24 gives anyone penalised by an Adjudicating Officer the right to appeal to the National Green Tribunal. For an Ayurvedic company facing a penalty, this confirms the NGT (not a civil court) is the correct appellate forum.

The Exact Legal Text:

24. Appeals from Order of Adjudicating Officer.— Any person aggrieved by the order of the Adjudicating Officer may prefer an appeal to the National Green Tribunal established under section 3 of the National Green Tribunal Act, 2010 (19 of 2010), under section 52A of the Act.

Keywords/Triggers:

appeal to NGT, National Green Tribunal appeal, section 52A appeal, adjudicating officer order challenge, penalty appeal forum, biodiversity penalty appeal

Title: Factors for Determining Quantum of Penalty

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 25

Plain English Summary:

Rule 25 sets the actual penalty range for violations — a minimum of ₹1 lakh up to ₹50 lakh, scaled by unfair gain or environmental/resource damage, with an additional penalty of up to ₹1 crore for continued contravention. For an Ayurvedic business, this quantifies the real financial exposure of non-compliance with the access, transfer, or IP-approval rules.

The Exact Legal Text:

25. Factors to be considered while determining quantum of penalty.— (1) The Adjudicating Officer shall have due regard to the following factors for determining the quantum of penalty, namely:—

- (a) the amount of disproportionate gain or unfair advantage, wherever quantifiable, made as a result of contravention of the provisions of the Act;
- (b) the penalty for contravention of the provisions referred to in section 55 of the Act shall not be less than one lakh rupees and may extend to fifty lakh rupees;
- (c) in case the damage caused, exceeds the amount of penalty under sub-rule (2) then the penalty shall be commensurate with the damage caused.

Explanation.— In this clause the expression damage, includes damage to the environment and value of the biological resource used and value of the products derived from it by violating the provisions of the Act;

- (d) in case of a failure or continued contravention, an additional penalty not exceeding one crore rupees may be imposed over and above the penalty under sub-rule (2) or (3);

(e) any other things as may be considered by the Adjudicating Officer to be relevant for the conservation of biological diversity and protection of the environment.

(2) A penalty shall not be imposed without giving the person or entity concerned a reasonable opportunity of being heard in the matter.

(3) The penalty as imposed by the Adjudicating Officer under the Act shall be in addition to the liability to pay relief or compensation under section 55 of the Act and section 17 of the National Green Tribunal Act, 2010 (19 of 2010).

Keywords/Triggers:

penalty quantum, one lakh to fifty lakh fine, continued contravention penalty, disproportionate gain factor, damage to environment definition, one crore additional penalty, penalty hearing requirement

Title: Deposition of the Penalty Amount

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), Rule 26

Plain English Summary:

Rule 26 directs where penalty money goes: generally to the National Biodiversity Fund, except section 7 (State-level intimation) violations, which go to the relevant State/Union territory Biodiversity Fund. This is mostly a technical accounting rule with limited direct relevance to an applicant's own compliance strategy.

The Exact Legal Text:

26. Deposition of the penalty amount.— All amounts of penalties realised under these rules shall be deposited in the National Biodiversity Fund and all the amounts of penalties relating to offences under section 7 of the Act shall be deposited in the Biodiversity Fund of the State Biodiversity Board or the Union territory Biodiversity Council concerned, as the case may be.

Keywords/Triggers:

penalty deposit, National Biodiversity Fund penalty, section 7 penalty state fund, fine deposition rule, state biodiversity fund penalty

Title: First Schedule — Application Forms and Fees

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Rules, 2024 (G.S.R. 665(E)), First Schedule (see Rule 2(1)(f))

Plain English Summary:

The First Schedule is the master fee table for every NBA application form (1–16), ranging from ₹200 for a certificate of origin to ₹20,000 for commercial-utilisation access by an entity. For an Ayurvedic business budgeting for compliance, this table tells you exactly what each type of NBA filing will cost, with individuals consistently paying half of what entities pay.

The Exact Legal Text:

THE FIRST SCHEDULE

Application Forms and Fees

1. Application for seeking prior approval of the National Biodiversity Authority for access to biological resources or knowledge associated thereto for research or for bio-survey and bio-utilization by persons covered under section 3(2) of the Act. — For Individual ₹10,000; For Entity ₹20,000.
2. Application for seeking prior approval of the National Biodiversity Authority for access to biological resources or knowledge associated thereto for commercial utilization by persons covered under section 3(2) of the Act. — For Individual ₹10,000; For Entity ₹20,000.
3. Application for seeking prior approval of the National Biodiversity Authority for sharing or transferring the results of research to section 3(2) persons for commercial purposes or otherwise. — For Individual ₹5,000; For Entity ₹10,000.
4. Application for prior registration with the National Biodiversity Authority to use the results of research for further research by the transferee (section 3(2) person). — For Individual ₹2,000; For Entity ₹5,000.

5. Application for seeking prior approval of the National Biodiversity Authority to use the results of research for commercial utilisation by the transferee (section 3(2) person). — For Individual ₹10,000; For Entity ₹20,000.
6. Application for seeking prior approval to use the results of research for obtaining intellectual property rights by the transferee (section 3(2) person). — For Individual ₹5,000; For Entity ₹10,000.
7. Application for seeking prior approval of the National Biodiversity Authority before grant of intellectual property rights by persons covered under section 3(2) of the Act. — For Individual ₹5,000; For Entity ₹10,000.
8. Application for registration with the National Biodiversity Authority before grant of intellectual property rights by persons covered under section 7 of the Act. — For Individual ₹2,000; For Entity ₹5,000.
9. Application for seeking prior approval of the National Biodiversity Authority for commercialisation of intellectual property rights by persons covered under section 7 of the Act. — For Individual ₹5,000; For Entity ₹10,000.
10. Form for declaration of the use of biological resource or associated traditional knowledge obtained from any foreign country, in India. — Nil.
11. Application cum format for obtaining certificate of origin for cultivated medicinal plants. — ₹200.
12. Format of book containing details of cultivated medicinal plants to be maintained by the Biodiversity Management Committee. — Nil.
13. Application for seeking prior approval of the National Biodiversity Authority for sending/carrying the biological resources outside India by Indian researchers/institutions for conducting non-commercial research or research for emergency purposes. — ₹1,000.
14. Form of Memorandum of Appeal before the Central Government for settlement of disputes. — Nil.
15. Format of notice to be issued by the Ministry of Environment, Forest and Climate Change or National Biodiversity Authority for appearance before it. — Nil.
16. Format of notice by any person/benefit claimer. — Nil.

Keywords/Triggers:

NBA fee schedule, application fee individual entity, patent approval fee NBA, certificate of origin fee, commercial utilisation fee, ABS filing costs, First Schedule fees

Title: Patentable Subject Matter and Access Rules — Definitions

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter I, Section 2

Plain English Summary:

Section 2 defines the key terms used throughout the Act, including "biological resources,"

"benefit claimers," "commercial utilization," and "research." For an Ayurvedic company, these definitions matter because they decide whether a plant, herb, formulation process, or piece of traditional knowledge falls inside the Act's scope at all — and "commercial utilization" expressly covers drugs, cosmetics, and extracts, placing most Ayurvedic product development squarely within the Act.

The Exact Legal Text:

In this Act, unless the context otherwise requires—

- (a) "benefit claimers" means the conservers of biological resources, their by-products, creators and holders of knowledge and information relating to the use of such biological resources, innovations and practices associated with such use and application;
- (b) "biological diversity" means the variability among living organisms from all sources and the ecological complexes of which they are part, and includes diversity within species or between species and of eco-systems;
- (c) "biological resources" means plants, animals and micro-organisms or parts thereof, their genetic material and by-products (excluding value added products) with actual or potential use or value, but does not include human genetic material;
- (d) "bio-survey and bio-utilization" means survey or collection of species, subspecies, genes, components and extracts of biological resource for any purpose and includes characterization, inventorisation and bioassay;
- (f) "commercial utilization" means end uses of biological resources for commercial utilization such as drugs, industrial enzymes, food flavours, fragrance, cosmetics, emulsifiers, oleoresins, colours, extracts and genes used for improving crops and livestock through genetic intervention, but does not include conventional breeding or traditional practices in use in any agriculture, horticulture, poultry, dairy farming, animal husbandry or bee keeping;
- (g) "fair and equitable benefit sharing" means sharing of benefits as determined by the National Biodiversity Authority under section 21;
- (m) "research" means study or systematic investigation of any biological resource or technological application, that uses biological systems, living organisms or derivatives thereof to make or modify products or processes for any use;
- (p) "value added products" means products which may contain portions or extracts of plants and animals in unrecognizable and physically inseparable form.

Keywords/Triggers:

biological resource definition, benefit claimer, commercial utilization Ayurveda, value added product, bio-survey, biodiversity definitions, traditional knowledge holder

Title: Restrictions on Foreign Access to Biological Resources

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter II, Section 3

Plain English Summary:

Section 3 requires foreign nationals, non-resident Indians, and foreign-linked companies to obtain NBA approval before accessing any Indian biological resource or associated knowledge for research, commercial use, or bio-survey. For an Ayurvedic business with foreign investment or a foreign parent entity, access cannot begin until NBA clearance is secured; purely Indian-owned entities are covered by Section 7 instead.

The Exact Legal Text:

3.(1) No person referred to in sub-section (2) shall, without previous approval of the National Biodiversity Authority, obtain any biological resource occurring in India or knowledge associated thereto for research or for commercial utilization or for bio-survey and bio-utilization.

(2) The persons who shall be required to take the approval of the National Biodiversity Authority under sub-section (1) are the following, namely:—

(a) a person who is not a citizen of India;

(b) a citizen of India, who is a non-resident as defined in clause (30) of section 2 of the Income-tax Act, 1961;

(c) a body corporate, association or organization—

(i) not incorporated or registered in India; or

(ii) incorporated or registered in India under any law for the time being in force which has any non-Indian participation in its share capital or management.

Keywords/Triggers:

NBA approval, foreign access biological resource, non-resident Indian biodiversity, foreign investment Ayurveda company, prior approval research, bio-utilization approval

Title: Restrictions on Transferring Research Results Abroad

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter II, Section 4

Plain English Summary:

Section 4 stops anyone from handing over research results based on Indian biological resources to a foreign person or entity without NBA approval, whether or not money changes hands. For an Ayurvedic research team collaborating internationally, this applies before sharing lab data or formulation results with an overseas partner; publishing research papers per Central Government guidelines is exempt.

The Exact Legal Text:

4. No person shall, without the previous approval of the National Biodiversity Authority, transfer the results of any research relating to any biological resources occurring in, or obtained from, India for monetary consideration or otherwise to any person who is not a citizen of India or citizen of India who is non-resident as defined in clause (30) of section 2 of the Income-tax Act, 1961 or a body corporate or organization which is not registered or incorporated in India or

which has any non-Indian participation in its share capital or management.

Explanation.—For the purposes of this section, "transfer" does not include publication of research papers or dissemination of knowledge in any seminar or workshop, if such publication is as per the guidelines issued by the Central Government.

Keywords/Triggers:

transfer of research results, foreign collaboration approval, research data transfer India, biological resource licensing, publication exemption, monetary consideration transfer

Title: Exemption for Collaborative Research Projects

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter II, Section 5

Plain English Summary:

Section 5 exempts genuine collaborative research projects between Indian and foreign institutions from Sections 3 and 4, provided they follow Central Government policy guidelines and get Central Government approval. For an Ayurvedic research institute partnering with a foreign university, this is the lawful route to exchange resources/data without separate NBA approval, so long as the project is government-approved.

The Exact Legal Text:

5.(1) The provisions of sections 3 and 4 shall not apply to collaborative research projects involving transfer or exchange of biological resources or information relating thereto between institutions, including Government sponsored institutions of India, and such institutions in other countries, if such collaborative research projects satisfy the conditions specified in sub-section

(3).

(2) All collaborative research projects, other than those referred to in sub-section (1) which are based on agreements concluded before the commencement of this Act and in force shall, to the extent the provisions of agreement are inconsistent with the provisions of this Act or any guidelines issued under clause (a) of sub-section (3), be void.

(3) For the purposes of sub-section (1), collaborative research projects shall—

(a) conform to the policy guidelines issued by the Central Government in this behalf;

(b) be approved by the Central Government.

Keywords/Triggers:

collaborative research project, joint research approval, government sponsored institution, foreign university collaboration, exemption section 3 4, Central Government policy guidelines

Title: Prior NBA Approval Before Filing Any IP Application

Jurisdiction: India

Category: Patents

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter II, Section 6

Plain English Summary:

Section 6 is the single most important provision for Ayurvedic patent strategy: no one may file for a patent or any other IP right, in India or abroad, for an invention based on research/information on a biological resource obtained from India, without NBA approval. For patents specifically, permission may be obtained any time after acceptance but before sealing. The NBA can attach a benefit-sharing fee or royalty; plant-variety-protection applications are exempt from this section (though NBA must still be notified).

The Exact Legal Text:

6.(1) No person shall apply for any intellectual property right, by whatever name called, in or outside India for any invention based on any research or information on a biological resource obtained from India without obtaining the previous approval of the National Biodiversity Authority before making such application.

Provided that if a person applies for a patent, permission of the National Biodiversity Authority may be obtained after the acceptance of the patent but before the sealing of the patent by the patent authority concerned:

Provided further that the National Biodiversity Authority shall dispose of the application for permission made to it within a period of ninety days from the date of receipt thereof.

(2) The National Biodiversity Authority may, while granting the approval under this section, impose benefit sharing fee or royalty or both or impose conditions including the sharing of financial benefits arising out of the commercial utilization of such rights.

(3) The provisions of this section shall not apply to any person making an application for any right under any law relating to protection of plant varieties enacted by Parliament.

(4) Where any right is granted under law referred to in sub-section (3), the concerned authority granting such right shall endorse a copy of such document granting the right to the National Biodiversity Authority.

Keywords/Triggers:

NBA approval for patent, patent Ayurvedic formulation, IP application biological resource, benefit sharing fee patent, patent sealing NBA permission, plant variety protection exemption, biopiracy patent

Title: Prior Intimation to State Biodiversity Board (Indian Applicants)

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter II, Section

7

Plain English Summary:

Section 7 requires Indian citizens and India-registered companies (not covered by Section 3) to give prior intimation to the State Biodiversity Board before commercial sourcing of a biological resource. For an Ayurvedic manufacturer sourced entirely within India, this — not Section 3 —

is the relevant compliance step. Crucially, local people, growers, cultivators, and traditional practitioners like **vaid**s and **hakim**s are specifically exempted.

The Exact Legal Text:

7. No person, who is a citizen of India or a body corporate, association or organization which is registered in India, shall obtain any biological resource for commercial utilization, or bio-survey and bio-utilization for commercial utilization except after giving prior intimation to the State Biodiversity Board concerned:

Provided that the provisions of this section shall not apply to the local people and communities of the area, including growers and cultivators of biodiversity, and **vaid**s and **hakim**s, who have been practicing indigenous medicine.

Keywords/Triggers:

State Biodiversity Board intimation, commercial utilization Indian company, local **vaid**s **hakim**s exemption, prior intimation biological resource, sourcing herbs India, indigenous medicine practitioner exemption

Title: Functions and Powers of the National Biodiversity Authority

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter IV, Section

Plain English Summary:

Section 18 sets the NBA's core mandate: regulating Sections 3, 4, and 6 activities, issuing ABS guidelines, advising government, and granting/refusing approvals. It also confirms the NBA can act on the Government's behalf to oppose a foreign patent granted abroad over an Indian biological resource or knowledge — the Act's main anti-biopiracy tool.

The Exact Legal Text:

18.(1) It shall be the duty of the National Biodiversity Authority to regulate activities referred to in sections 3, 4 and 6 and by regulations issue guidelines for access to biological resources and for fair and equitable benefit sharing.

(2) The National Biodiversity Authority may grant approval for undertaking any activity referred to in sections 3, 4 and 6.

(3) The National Biodiversity Authority may—

(a) advise the Central Government on matters relating to the conservation of biodiversity, sustainable use of its components and equitable sharing of benefits arising out of the utilization of biological resources;

(b) advise the State Governments in the selection of areas of biodiversity importance to be notified under sub-section (1) of section 37 as heritage sites and measures for the management of such heritage sites;

(c) perform such other functions as may be necessary to carry out the provisions of this Act.

(4) The National Biodiversity Authority may, on behalf of the Central Government, take any measures necessary to oppose the grant of intellectual property rights in any country outside India on any biological resource obtained from India or knowledge associated with such biological resource which is derived from India.

Keywords/Triggers:

NBA functions, NBA powers, access and benefit sharing guidelines, oppose foreign patent, biopiracy opposition, NBA advisory role

Title: Application Procedure to the NBA

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter V, Section 19

Plain English Summary:

Section 19 lays out the actual filing procedure: applicants must submit the prescribed form and fee, whether seeking access approval or Section 6 patent clearance. The NBA can grant approval with conditions (including royalty) or reject in writing — but only after a hearing — and must give public notice of any approval.

The Exact Legal Text:

19.(1) Any person referred to in sub-section (2) of section 3 who intends to obtain any biological resource occurring in India or knowledge associated thereto for research or for commercial utilization or for bio-survey and bio-utilization or transfer the results of any research relating to biological resources occurring in, or obtained from, India, shall make application in such form and payment of such fees as may be prescribed, to the National Biodiversity Authority.

(2) Any person who intends to apply for a patent or any other form of intellectual property protection whether in India or outside India referred to in sub-section (1) of section 6, may make an application in such form and in such manner as may be prescribed to the National Biodiversity Authority.

(3) On receipt of an application under sub-section (1) or sub-section (2), the National Biodiversity Authority may, after making such enquiries as it may deem fit and if necessary after consulting an expert committee constituted for this purpose, by order, grant approval subject to any regulations made in this behalf and subject to such terms and conditions as it may deem fit, including the imposition of charges by way of royalty or for reasons to be recorded in writing, reject the application:

Provided that no such order for rejection shall be made without giving an opportunity of being heard to the person affected.

(4) The National Biodiversity Authority shall give public notice of every approval granted by it under this section.

Keywords/Triggers:

NBA application form, patent application procedure NBA, royalty charges NBA, application rejection hearing, public notice of approval, expert committee NBA

Title: Restrictions on Onward Transfer After Approval

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter V, Section 20

Plain English Summary:

Section 20 means an existing NBA approval doesn't automatically extend to a new party — if a company licenses a formulation, sells distribution rights, or brings in a new joint-venture partner, a fresh NBA application and approval is needed for that transfer.

The Exact Legal Text:

20.(1) No person who has been granted approval under section 19 shall transfer any biological resource or knowledge associated thereto which is the subject matter of the said approval except with the permission of the National Biodiversity Authority.

(2) Any person who intends to transfer any biological resource or knowledge associated thereto referred to in sub-section (1) shall make an application in such form and in such manner as may be prescribed to the National Biodiversity Authority.

(3) On receipt of an application under sub-section (2), the National Biodiversity Authority may, after making such enquiries as it may deem fit and if necessary after consulting an expert committee constituted for this purpose, by order, grant approval subject to such terms and conditions as it may deem fit, including the imposition of charges by way of royalty or for reasons to be recorded in writing, reject the application:

Provided that no such order for rejection shall be made without giving an opportunity of being heard to the person affected.

(4) The National Biodiversity Authority shall give public notice of every approval granted by it under this section.

Keywords/Triggers:

transfer of approval, resale biological resource, licensing formulation NBA, joint venture transfer approval, onward transfer permission, NBA royalty transfer

Title: Determination of Equitable Benefit Sharing

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter V, Section 21

Plain English Summary:

Section 21 is the statutory basis for benefit sharing: when granting Section 19/20 approvals, the NBA must ensure equitable sharing with local bodies/benefit claimers, via joint IP ownership, technology transfer, jobs, monetary compensation, or a venture fund. Any monetary amount can go to the National Biodiversity Fund, or directly to the identified individuals/community whose resource/knowledge was used.

The Exact Legal Text:

21.(1) The National Biodiversity Authority shall while granting approvals under section 19 or section 20 ensure that the terms and conditions subject to which approval is granted secures equitable sharing of benefits arising out of the use of accessed biological resources, their by-products, innovations and practices associated with their use and applications and knowledge relating thereto in accordance with mutually agreed terms and conditions between the person applying for such approval, local bodies concerned and the benefit claimers.

(2) The National Biodiversity Authority shall, subject to any regulations made in this behalf, determine the benefit sharing which shall be given effect in all or any of the following manner, namely:—

(a) grant of joint ownership of intellectual property rights to the National Biodiversity Authority, or where benefit claimers are identified, to such benefit claimers;

(b) transfer of technology;

(c) location of production, research and development units in such areas which will facilitate better living standards to the benefit claimers;

(d) association of Indian scientists, benefit claimers and the local people with research and development in biological resources and bio-survey and bio-utilization;

(e) setting up of venture capital fund for aiding the cause of benefit claimers;

(f) payment of monetary compensation and non-monetary benefits to the benefit claimers as the National Biodiversity Authority may deem fit.

(3) Where any amount of money is ordered by way of benefit sharing, the National Biodiversity Authority may direct the amount to be deposited in the National Biodiversity Fund:

Provided that where biological resource or knowledge was a result of access from specific individual or group of individuals or organizations, the National Biodiversity Authority may direct that the amount shall be paid directly to such individual or group of individuals or organizations in accordance with the terms of any agreement and in such manner as it deems fit.

(4) For the purposes of this section, the National Biodiversity Authority shall, in consultation with the Central Government, by regulations, frame guidelines.

Keywords/Triggers:

equitable benefit sharing, NBA benefit sharing methods, monetary compensation benefit claimers, National Biodiversity Fund deposit, joint ownership IP NBA, technology transfer benefit sharing, venture capital fund biodiversity

Title: Power to Exempt Certain Biological Resources

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter IX, Section 40

Plain English Summary:

Section 40 lets the Central Government, in consultation with the NBA, declare that the Act doesn't apply to specified items, including commodities normally traded. This is the statutory basis for the cultivated-medicinal-plant exemption you saw invoked repeatedly in the 2024 Rules and 2025 Regulations.

The Exact Legal Text:

40. Notwithstanding anything contained in this Act, the Central Government may, in consultation with the National Biodiversity Authority, by notification in the Official Gazette, declare that the provisions of this Act shall not apply to any items, including biological resources normally traded as commodities.

Keywords/Triggers:

exempted biological resources, commodities exemption notification, Central Government exemption, normally traded biological resource, NBA exemption list, notified exemption Ayurveda herbs

Title: Constitution of Biodiversity Management Committees

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter X, Section 41

Plain English Summary:

Section 41 requires every local body to form a Biodiversity Management Committee (BMC) to document local biodiversity and traditional knowledge. For sourcing at the village level, the BMC is your first point of contact — it must be consulted before local resource decisions, and it can levy its own collection fees.

The Exact Legal Text:

41.(1) Every local body shall constitute a Biodiversity Management Committee within its area for the purpose of promoting conservation, sustainable use and documentation of biological diversity including preservation of habitats, conservation of land races, folk varieties and cultivars, domesticated stocks and breeds of animals and micro-organisms and chronicling of knowledge relating to biological diversity.

(2) The National Biodiversity Authority and the State Biodiversity Boards shall consult the Biodiversity Management Committees while taking any decision relating to the use of biological resources and knowledge associated with such resources occurring within the territorial jurisdiction of the Biodiversity Management Committee.

(3) The Biodiversity Management Committees may levy charges by way of collection fees from any person for accessing or collecting any biological resource for commercial purposes from areas falling within its territorial jurisdiction.

Keywords/Triggers:

Biodiversity Management Committee, BMC collection fee, local body conservation, panchayat biodiversity, peoples biodiversity register, local sourcing herbs fee

Title: Penalties for Contravention

Jurisdiction: India

Category: Biodiversity

Source Citation: The Biological Diversity Act, 2002 (Act No. 18 of 2003), Chapter XII, Section 55

Plain English Summary:

Section 55 sets criminal-scale penalties: violating Sections 3, 4, or 6 (unauthorized access, transfer, or patent filing) can mean up to 5 years' imprisonment, a fine up to ₹10 lakh (or higher if damage exceeds that), or both. A lighter penalty (up to 3 years/₹5 lakh) applies to Section 7 breaches. This underscores why NBA approval before filing a patent is a real compliance obligation, not paperwork.

The Exact Legal Text:

55.(1) Whoever contravenes or attempts to contravene or abets the contravention of the provisions of section 3 or section 4 or section 6 shall be punishable with imprisonment for a term which may extend to five years, or with fine which may extend to ten lakh rupees and where the damage caused exceeds ten lakh rupees such fine may commensurate with the damage caused, or with both.

(2) Whoever contravenes or attempts to contravene or abets the contravention of the provisions of section 7 or any order made under sub-section (2) of section 24 shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to five lakh rupees, or with both.

Keywords/Triggers:

penalty biodiversity act, imprisonment patent violation, fine unauthorized access, section 3 4 6 penalty, section 7 penalty, biopiracy criminal liability